Services Agreement

Fruition Services Pty Ltd (ABN 12 667 454 006)

Version: 1.2 | **Effective date:** 30/06/2026

This Services Agreement (this "**Agreement**") sets out the terms on which **Fruition Services Pty Ltd** (ABN 12 667 454 006) of Level 12/64 York Street, Sydney, NSW, Australia ("**Fruition**") provides services to its clients.

This Agreement is incorporated by reference into, and forms part of, each Work Order executed between Fruition and a Client. It has no operative effect on its own and binds a Client only upon execution of a Work Order that incorporates it. Fruition and the Client are each referred to as a Party and together as the Parties.

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Background

A. Fruition provides business process consulting, software implementation, system integration, technology delivery and evaluation support services to clients across multiple sectors.

B. The Client wishes to engage Fruition to provide certain services on the terms set out in this Agreement, and Fruition has agreed to provide those services on those terms.

C. This Agreement is intended to operate as the master framework governing all engagements between the Parties. The commercial particulars of each engagement will be set out in a separate Work Order, which incorporates this Agreement by reference and forms a separate contract on the terms of this Agreement.

D. The Parties are each sophisticated commercial entities that have had the opportunity to obtain independent legal advice in relation to this Agreement. The terms of this Agreement, including those allocating risk and limiting liability, have been freely negotiated and reflect a fair and reasonable commercial bargain. No term of this Agreement is to be construed against a Party solely because that Party or its advisers were responsible for its preparation.

Operative provisions

In consideration of the mutual promises and obligations set out in this Agreement, the Parties agree as follows.

1. Definitions and Interpretation

1.1 Definitions

In this Agreement, the following terms have the meanings set out below, unless the context otherwise requires.

Acceptance means the Client's written confirmation that a Deliverable satisfies the Acceptance Criteria, or deemed acceptance under clause 3.4.

Acceptance Criteria means the criteria against which a Deliverable is to be assessed, as specified in the applicable Work Order or Specification or, where not specified, criteria consistent with good industry practice for services of the type in question.

Acceptance Period means the period for the Client to review a submitted Deliverable, as specified in the applicable Work Order or, where not specified, 10 Business Days from the date of Fruition's submission notice.

ACL means the Australian Consumer Law as set out in Schedule 2 of the Competition and Consumer Act 2010 (Cth).

Agreement this Services Agreement as published by Fruition and incorporated by reference into a Work Order, together with all Schedules and the applicable Work Order, as amended from time to time in accordance with clauses 1.5 and 23.5. means this Services Agreement, together with all Schedules and Work Orders entered into under it, as amended from time to time in accordance with clause 23.5.

Anti-Bribery Laws means all laws relating to bribery, corruption, fraud, money laundering and the prevention of financial crime applicable to a Party or its Personnel, including Division 70 of the Criminal Code Act 1995 (Cth), the Anti-Money Laundering and Counter-Terrorism Financing Act 2006 (Cth), the US Foreign Corrupt Practices Act 1977, the UK Bribery Act 2010 and any equivalent legislation in any jurisdiction in which a Party conducts business.

Business Day means any day other than a Saturday, Sunday or public holiday in Sydney, New South Wales on which banks are open for general business.

Change in Control means any transaction or series of transactions resulting in a change in the ultimate beneficial ownership or effective control of a Party, including by way of share sale, asset sale, merger or scheme of arrangement.

Change Request means a written request by either Party to modify the scope, timeline, Fees or other terms of a Work Order, submitted in accordance with clause 4.

Client means the entity identified as the Client in the opening of this Agreement or in the applicable Work Order.

Client Materials means all materials, data, documents and information provided to Fruition by or on behalf of the Client in connection with this Agreement, including customer data, pricing information, research data and marketing materials.

Commencement Date means the date on which the Services are to commence under the applicable Work Order.

Confidential Information means all non-public information disclosed by one Party to the other in connection with this Agreement that the recipient knows or ought reasonably to know is confidential, including the terms of this Agreement, financial data, business strategies, client and customer information, pricing, Personnel details, and technical or commercial know-how. Confidential Information does not include information that: (a) is or becomes publicly available other than through a breach of this Agreement; (b) the recipient can demonstrate was in its possession before disclosure, free from any confidentiality obligation; (c) is independently developed by the recipient without reference to the Confidential Information; or (d) must be disclosed by applicable law or court order, subject to clause 17.3.

Contract Period means the term of the relevant Services Agreement, as specified in the applicable Work Order and as extended under clause 9.2.

CPI means the Consumer Price Index (All Groups, Sydney) published by the Australian Bureau of Statistics, or any successor index.

Default Rate means 12% per annum, calculated daily and compounding monthly.

Defect means any failure of a Deliverable to conform to the Acceptance Criteria or, where none are specified, to perform materially in accordance with its stated purpose.

Deliverable means any output, report, document, software, design or other item Fruition is required to produce and deliver to the Client under a Work Order.

Dispute means any dispute or difference arising out of or in connection with this Agreement, including any question as to its formation, validity, interpretation, performance, breach or termination.

Effective Date means the date on which this Agreement is executed by the last of the Parties to sign it.

Fees means the fees payable by the Client to Fruition for the Services, as specified in the applicable Work Order, including any amounts agreed under a Change Request.

Force Majeure Event means any event beyond a Party's reasonable control that could not reasonably have been foreseen or prevented and is not attributable to that Party's acts or omissions, including cyber attacks or ransomware; war, invasion or acts of foreign enemies; terrorism, rebellion, riots or civil disorder; acts of God including earthquakes, floods or hurricanes; pandemics, epidemics or quarantine restrictions; and acts of any government or regulatory authority. Industrial disputes and failures of a Party's own systems or suppliers are excluded.

Fruition means Fruition Services Pty Ltd (ABN 12 667 454 006), a company incorporated in New South Wales, Australia.

GST means goods and services tax as defined in A New Tax System (Goods and Services Tax) Act 1999 (Cth).

Insolvency Event means in relation to a Party: the appointment of a receiver, administrator, liquidator or trustee in bankruptcy over that Party or any of its assets; an order or resolution for its winding up; its inability to pay debts as they fall due; entry into any arrangement or compromise with creditors; or any analogous event.

Intellectual Property means all present and future intellectual property rights, whether registered or unregistered, anywhere in the world, including copyright (including in source code and object code), trade marks, patents, designs, know-how, trade secrets, domain names, database rights, moral rights, and all applications and renewals of any of the foregoing.

Key Personnel means the Personnel of Fruition designated as key to a particular engagement in the applicable Work Order.

Losses means all losses, damages, liabilities, claims, demands, costs and expenses (including legal costs on a solicitor-client indemnity basis).

Milestone means a defined stage in the delivery of the Services or Deliverables, as specified in the applicable Work Order or Project Plan.

Modern Slavery Laws means the Modern Slavery Act 2018 (Cth), the Modern Slavery Act 2018 (NSW) and any other applicable laws addressing slavery, servitude, forced labour, child labour or human trafficking.

Notifiable Data Breach means an eligible data breach as defined in Part IIIC of the Privacy Act 1988 (Cth), or any analogous event requiring notification to an individual, regulator or governmental authority under any applicable privacy or data protection law.

Parties means Fruition and the Client, and Party means either of them.

Personal Information means the meaning given to that term in the Privacy Act 1988 (Cth).

Personnel means in relation to a Party, its directors, officers, employees, contractors, agents and subcontractors.

PPSA means the Personal Property Securities Act 2009 (Cth).

Pre-Existing Works means all materials, methodologies, tools, templates, software, processes and Intellectual Property owned or licensed by Fruition: (a) prior to the Commencement Date; or (b) created by Fruition independently of this Agreement.

Project Manager means the individual appointed by each Party under clause 5.1.

Project Plan means a document setting out the timeline, Milestones, resource allocation and delivery parameters for an engagement, as agreed by the Parties.

Related Parties means in relation to a Party, its directors, officers, employees, professional advisers, and any body corporate that directly or indirectly controls, is controlled by, or is under common control with that Party.

Sanctions Laws means all economic, financial or trade sanctions laws, regulations, embargoes or restrictive measures administered, enacted or enforced by Australia (including the Charter of the United Nations Act 1945 (Cth) and the Autonomous Sanctions Act 2011 (Cth)), the United Nations Security Council, the United States (including those administered by the Office of Foreign Assets Control), the United Kingdom or the European Union.

Services means the services and, as applicable, products to be provided by Fruition as set out in a Work Order, as modified by any accepted Change Request.

Service Levels means the service levels, response times, performance metrics or other quantitative standards specified in a Work Order, as referred to in clause 2.4.

Services Agreement means in respect of a particular Work Order, the contract formed between the Parties consisting of this Agreement, that Work Order and any document incorporated into or attached to that Work Order.

Specification means a document describing the technical and functional requirements for the Services or Deliverables, incorporated into or attached to a Work Order.

Third Party Works means materials produced, developed or owned by a third party that are incorporated into or used in providing the Services, including open-source software, stock images, licensed datasets and third-party platforms.

WHS Laws means the Work Health and Safety Act 2011 (Cth), the Work Health and Safety Act 2011 (NSW) and all corresponding work health and safety laws, regulations and codes of practice in any State or Territory in which the Services are performed.

Whistleblower Laws means Part 9.4AAA of the Corporations Act 2001 (Cth), Part IVD of the Taxation Administration Act 1953 (Cth) and any other applicable laws protecting persons who disclose information about suspected misconduct or improper conduct.

Work Order means an order or statement of work in the form set out in Schedule 1, completed by the Client and accepted by Fruition, that: (a) identifies the Services, Deliverables, Fees and Contract Period; (b) incorporates this Agreement; and (c) is signed or otherwise agreed to in writing by both Parties. A quote or proposal does not constitute a Work Order unless signed by both Parties.

Works means all work products, Deliverables and outputs produced by Fruition for the Client under this Agreement, together with all Intellectual Property subsisting in them.

1.2 Interpretation

In this Agreement, unless the context otherwise requires:

(a) the singular includes the plural and vice versa;

(b) a reference to a person includes any individual, company, body corporate, partnership, trust or other legal entity;

(c) a reference to legislation includes any amendment, re-enactment or replacement of that legislation;

(d) ‘including’ and ‘includes’ are not words of limitation and are read as if followed by ‘without limitation’;

(e) headings and sub-headings are for convenience only and do not affect interpretation;

(f) a reference to writing or written includes email;

(g) references to time and dates are to Sydney, New South Wales time;

(h) a reference to a clause, sub-clause, Schedule or paragraph is a reference to a clause, sub-clause, Schedule or paragraph of this Agreement; and

(i) no rule of construction applies to the disadvantage of a Party by reason of that Party’s responsibility for preparing this Agreement.

1.3 Multiple Work Orders

There is no limit on the number of Work Orders that may be entered into under this Agreement. Each Work Order gives rise to a separate and distinct Services Agreement in respect of the engagement to which it relates. A breach of, or termination of, one Services Agreement does not of itself constitute a breach of, or terminate, any other Services Agreement.

1.4 Order of Precedence

In the event of any inconsistency between this Agreement and a Work Order, this Agreement prevails in all matters relating to liability, confidentiality, intellectual property, termination and governing law, unless the Work Order contains a specific and express override of the relevant provision identifying the clause it overrides.

1.5 Publication, Incorporation and Versioning

(a) This Agreement is published at https://fruitionservices.io/legal/services-agreement-au (the "**Published Terms**"). Each version of the Published Terms is identified by a version number and an effective date.

(b) The version of this Agreement in force at the date a Work Order is executed applies to that Work Order, and continues to apply to that Work Order for its duration notwithstanding any later amendment to the Published Terms.

(c) Fruition may amend the Published Terms from time to time. An amendment applies only to Work Orders executed on or after the amendment's effective date, and does not vary any existing Work Order except by a written instrument signed by both Parties in accordance with clause 23.5.

(d) By executing a Work Order, the Client acknowledges that it has been given access to, has had a reasonable opportunity to read, and agrees to be bound by, this Agreement as published at the date of execution.

(e) Fruition will maintain an archive of superseded versions of the Published Terms and will, on request, provide the Client with a copy of the version applicable to a Work Order.

2. Services

2.1 Provision of Services

Fruition shall perform and deliver the Services to the Client in accordance with the applicable Services Agreement, including any applicable Specification and Project Plan. Fruition shall commence the Services on the Commencement Date and shall use all reasonable endeavours to complete the Services within the timeframes specified in the Work Order. Where no timeframe is specified for a particular Service or Deliverable, Fruition shall perform that Service or produce that Deliverable within a reasonable time having regard to the nature of the engagement.

2.2 Standard of Performance

In performing the Services, Fruition shall at all times:

(a) exercise the degree of skill, care, diligence and professional judgment expected of a competent and experienced provider of services of the same type, acting in accordance with good industry practice;

(b) comply with all applicable laws, regulations, standards and codes of practice relevant to the performance of the Services, including any industry-specific requirements specified in the applicable Work Order;

(c) comply with the Client's reasonable written directions and policies communicated to Fruition in advance, provided they do not require Fruition to act unlawfully, outside the agreed scope, or in a manner that would materially increase Fruition's obligations without a corresponding adjustment to Fees agreed in writing;

(d) allocate sufficient, suitably qualified and experienced Personnel and ensure those individuals have the expertise appropriate to the specific tasks they are performing;

(e) use equipment, tools, systems, software and materials that are fit for purpose and appropriately licensed; and

(f) ensure that the outputs of the Services are consistent in quality with the requirements of the applicable Work Order and Specification.

2.3 Communication of Issues

Where Fruition becomes aware of a matter that will, in its reasonable view, materially prevent it from meeting a Milestone or delivering a Deliverable by the agreed date, Fruition shall notify the Client in writing as soon as reasonably practicable, setting out the matter and any proposed steps to address it. This clause does not impose any ongoing monitoring or investigative duty on Fruition beyond the performance of the Services in accordance with clause 2.2.

2.4 Service Levels

Where a Work Order specifies Service Levels, Fruition shall perform in accordance with those Service Levels throughout the Contract Period. Where Fruition fails to meet a Service Level, it shall:

(a) investigate the cause without undue delay;

(b) provide the Client with a written root cause analysis and remediation plan within the timeframe specified in the Work Order or, where not specified, within 5 Business Days; and

(c) take all reasonable steps to prevent recurrence.

Any credits or other remedies for failure to meet a Service Level shall be as specified in the Work Order. In the absence of express provision, a failure to meet a Service Level does not of itself give rise to a right to terminate, but may give rise to a claim for damages subject to clause 13.

2.5 Work Orders

Fruition is not obliged to perform any Services unless a Work Order has been duly completed and executed by both Parties. A Work Order is only formed when it expressly incorporates this Agreement by reference (including by reference to the Published Terms) and is signed by an authorised representative of each Party. Each Work Order shall include, at a minimum:

(a) a description of the Services to be performed and the Deliverables to be produced;

(b) the Fees, fee structure and payment terms;

(c) the Commencement Date and Contract Period;

(d) the names of the Project Managers; and

(e) any Milestones or key dates.

2.6 Systems, Tools and Technology

Fruition shall:

(a) maintain the systems, tools, technology and infrastructure necessary to perform the Services throughout the Contract Period;

(b) ensure that any software, platform or tool used in providing the Services is appropriately licensed for that purpose and does not expose the Client to any licence infringement claim;

(c) implement and maintain reasonable technical controls to ensure the integrity, availability and security of its systems used in connection with the Services; and

(d) promptly notify the Client if any system, tool or technology used in providing the Services becomes unavailable, compromised or materially degraded in a manner that could affect the Client’s receipt of the Services.

2.7 Compliance with Client Policies

Where the Client provides Fruition with written copies of its applicable security, IT, health and safety or other workplace policies, Fruition shall ensure that its Personnel comply with those policies when working on the Client’s premises or accessing the Client’s systems, networks or data. Fruition shall acknowledge receipt of any such policies in writing. Fruition is not responsible for compliance with policies that have not been provided to it in writing in advance. Where compliance with a Client policy would require Fruition to incur material additional cost or significantly alter its obligations, the Parties shall discuss the matter in good faith and, if appropriate, agree a Change Request under clause 4.

If during the Contract Period the Client materially amends or replaces any policy previously notified to Fruition, and such amendment or replacement would result in material additional cost to Fruition or materially alter Fruition’s obligations, Fruition shall be entitled to a corresponding adjustment to the Fees and timeline by way of a Change Request under clause 4. Fruition is not required to comply with the amended or replacement policy until such adjustment is agreed in writing.

2.8 Right to Suspend Services

Fruition may, upon giving the Client not less than 5 Business Days’ prior written notice specifying the ground for suspension, suspend the provision of all or part of the Services if:

(a) the Client fails to pay any undisputed amount due under a Services Agreement and that failure continues for 5 Business Days after a written demand from Fruition; or

(b) an Insolvency Event occurs in relation to the Client.

During any period of suspension, Fruition's obligation to perform the suspended Services is relieved to the extent of the suspension, and the Client's obligation to pay Fees for Services not performed during the suspension is suspended correspondingly. Fruition shall lift the suspension promptly upon the relevant default being remedied to Fruition's reasonable satisfaction. Fruition is not liable for any loss, damage or consequence arising from a suspension effected in good faith in accordance with this clause.

2.9 Cessation and Variation of Services

The Client may request Fruition to cease or vary the Services under a Work Order by giving at least 60 days' prior written notice. Any variation to scope shall be documented as a Change Request under clause 4. Upon cessation, the Client shall:

(a) pay all Fees accrued for Services properly performed up to and including the cessation date;

(b) reimburse all expenses approved and properly incurred under clause 7.4 as at that date; and

(c) indemnify Fruition against all third-party costs, commitments and cancellation fees reasonably incurred by Fruition in connection with the original Work Order scope up to and including receipt of the cessation notice, to the extent those costs cannot reasonably be mitigated.

2.10 Requests for Instructions

Fruition may, at any time, request the Client to provide instructions, approvals or decisions on any matter arising in the course of performing the Services. The Client shall respond within 3 Business Days, or such shorter period as Fruition reasonably specifies having regard to the urgency of the matter. If the Client fails to respond in time, Fruition may:

(a) proceed on the basis of a reasonable assumption having regard to the context and the Client's prior instructions, notifying the Client immediately in writing of the assumption made; or

(b) suspend the relevant work pending the Client's instructions, in which case any resulting delay is treated as a Client-caused delay for the purposes of clause 5.8 and Fruition is entitled to a corresponding extension of time and, if it incurs additional costs as a result, a Fee adjustment under clause 4.

Actions taken by Fruition in good faith in accordance with the Client's actual or reasonably assumed instructions constitute proper conduct within the scope of the Services and do not give rise to any liability on the part of Fruition.

2.11 Withholding of Deliverables

Fruition is entitled, without liability to the Client, to withhold delivery of any Deliverable or the continuation of any Services if:

(a) any amount invoiced by Fruition remains unpaid beyond its due date, whether or not that amount is disputed;

(b) the Client has failed to perform any obligation under this Agreement that is a condition precedent to Fruition's performance; or

(c) an Insolvency Event has occurred in relation to the Client.

Fruition's exercise of this right does not constitute a breach of this Agreement and does not affect the accrual of Fees during the period of withholding. Fruition shall deliver the withheld Deliverable or resume the Services promptly upon the relevant default being remedied in full.

2.12 Right to Adjust Performance Approach

Fruition may, without the Client's prior consent, adjust the manner, method, sequence or approach by which it performs the Services, provided that such adjustment: (a) does not materially change the scope of the Services or the nature of the Deliverables; (b) does not result in additional cost to the Client; and (c) does not adversely affect the timeline for delivery. Nothing in this clause limits Fruition's right to request a Change Request where a more material adjustment is required.

3. Deliverables and Acceptance

3.1 Submission of Deliverables

Fruition shall submit each Deliverable to the Client in the format and by the method specified in the applicable Work Order, together with a written notice confirming that the Deliverable is ready for review and identifying the applicable Acceptance Criteria.

3.2 Client Review

The Client shall, within the Acceptance Period, either:

(a) issue written notice of Acceptance, confirming that the Deliverable satisfies the Acceptance Criteria; or

(b) issue a written notice of rejection, identifying each Defect in reasonable detail, referencing the specific Acceptance Criteria not satisfied and explaining the basis on which the Deliverable fails.

The Client may not reject a Deliverable on grounds not included in the Acceptance Criteria without the Parties' written agreement to amend those criteria, which shall be documented as a Change Request under clause 4. The Client shall use reasonable endeavours to conduct a thorough review so as to identify all Defects within a single review cycle.

3.3 Rectification

Following a rejection notice under clause 3.2(b), Fruition shall:

(a) review each identified Defect and confirm whether it constitutes a failure to satisfy the relevant Acceptance Criteria;

(b) rectify each confirmed Defect within the timeframe agreed by the Parties or, where not agreed, within a reasonable time having regard to the nature and severity of the Defect; and

(c) resubmit the Deliverable to the Client with a written summary of the changes made.

Fruition is not required to rectify any alleged Defect that does not constitute a failure to satisfy the Acceptance Criteria, or that results from a change in the Client's requirements made after the Acceptance Criteria were agreed. The Parties shall repeat the review and rectification process until Acceptance is achieved or a Dispute is referred under clause 21.

3.4 Deemed Acceptance

If the Client does not issue either a notice of Acceptance or a notice of rejection within the Acceptance Period, the Deliverable is deemed accepted in its submitted form at expiry of the Acceptance Period. The Client's right to reject that Deliverable on the basis of any Defect apparent upon a reasonable review is deemed waived.

3.5 Latent Defects

Acceptance (whether express or deemed) does not release Fruition from its obligation to correct latent Defects, being Defects that were not apparent upon a reasonable review during the Acceptance Period and that manifest within 30 days following Acceptance. Fruition shall rectify any such latent Defect at no additional charge.

3.6 Milestones

Where a Work Order specifies Milestones, Fruition shall use all reasonable endeavours to achieve each Milestone by the specified date. If Fruition anticipates that it may fail to achieve a Milestone, it shall notify the Client as soon as practicable, setting out:

(a) the reason for the anticipated delay;

(b) the expected extent of the delay; and

(c) the steps being taken to minimise the impact and recover the timeline.

A failure to achieve a Milestone by the specified date, other than as a result of a Force Majeure Event, a Change Request or a Client-caused delay, may give rise to a claim for Losses in accordance with clause 13, subject to the limitations in that clause.

4. Change Management

4.1 Change Requests

Either Party may submit a written Change Request to the other at any time after a Work Order is executed, substantially in the form set out in Schedule 2 (Change Request Form) or in such other written form as the Parties may agree. Each Change Request shall:

(a) describe the proposed change in sufficient detail to enable the other Party to assess its impact;
(b) state the requesting Party's reasons for the change; and
(c) indicate any proposed implementation timeline.

4.2 Impact Assessment

Upon receiving a Change Request from the Client, Fruition shall, within 10 Business Days or such other period as the Parties agree in writing, prepare and deliver to the Client a written impact assessment setting out:

(a) the work required to implement the change;
(b) the estimated impact on Fees;
(c) the estimated impact on the delivery timeline and Milestones;
(d) any impact on existing Deliverables or the Services; and
(e) any dependencies, risks or assumptions relevant to the change.

4.3 Approval and Implementation

A Change Request takes effect and becomes binding only when approved in writing by an authorised representative of each Party. Neither Party is obliged to approve a Change Request. Fruition shall not implement any change to the scope, timeline or Fees of a Services Agreement without an approved Change Request, except where a change is otherwise expressly authorised under this Agreement.

4.4 Change Request Log

Fruition shall maintain a written log of all Change Requests submitted, their status and the outcome of any impact assessment. This log shall be made available to the Client upon request and updated no less frequently than weekly during active engagements.

4.5 Emergency Changes

In urgent circumstances where a change is required to address a critical risk to the Client's systems, data or operations, Fruition may implement such change without prior formal approval, provided that:

(a) Fruition notifies the Client of the change and its rationale as soon as reasonably practicable; and
(b) the Parties formalise the change by way of a retrospective Change Request within 5 Business Days.

5. Project Governance

5.1 Appointment of Project Managers

Each Party shall, within 5 Business Days of execution of a Work Order (or such other period as the Parties agree in the Work Order), appoint a Project Manager for the relevant engagement. Each Party's Project Manager is the primary operational point of contact and is responsible for the day-to-day coordination of that Party's obligations under the relevant Services Agreement.

5.2 Replacement of Project Managers

A Party may replace its Project Manager at any time by giving the other Party at least 5 Business Days' prior written notice, identifying the incoming Project Manager and confirming that they have qualifications and experience reasonably comparable to those of the outgoing Project Manager. A Party must not replace its Project Manager with a person who does not have reasonably comparable qualifications without the other Party's prior written consent, not to be unreasonably withheld.

5.3 Key Personnel

Where a Work Order designates Key Personnel:

(a) Fruition shall ensure those individuals remain engaged on the relevant engagement for the Contract Period, unless the Client agrees otherwise in writing;

(b) Fruition shall not replace Key Personnel without the Client's prior written consent, not to be unreasonably withheld or delayed; and

(c) if Key Personnel become unavailable through circumstances beyond Fruition's reasonable control, Fruition shall:

  (i) notify the Client as soon as reasonably practicable;

  (ii) propose a suitable replacement with reasonably comparable skills and experience within 10 Business Days; and

  (iii) ensure an adequate handover from the outgoing personnel to the incoming replacement.

5.4 Removal of Personnel

The Client may, acting reasonably, request the removal of any Personnel (including Key Personnel) from an engagement where it has a reasonable and documented basis for doing so, including concerns about professional conduct, performance, conflicts of interest or a breach of the Client's site or security policies. Fruition shall consider any such request in good faith and, where the grounds are reasonable, take prompt steps to replace the relevant individual with a suitably qualified person.

5.5 Progress Reporting

Fruition shall provide the Client's Project Manager with written status reports at the frequency specified in the applicable Work Order or, where not specified, fortnightly throughout the Contract Period. Each status report shall include, at a minimum:

(a) progress against Milestones and the Project Plan;

(b) a summary of work completed since the last report;

(c) any issues, risks or dependencies that are known or anticipated, together with proposed mitigation strategies;

(d) any proposed changes to the Project Plan or delivery timeline; and

(e) any matters requiring a decision or input from the Client.

The Client shall review each status report and respond to any matters requiring its decision or input within 3 Business Days of receipt, unless a different timeframe is agreed.

5.6 Project Meetings

The Parties' Project Managers shall meet (in person or by videoconference) at the frequency specified in the Work Order or, where not specified, at least fortnightly, to review progress, address issues and maintain alignment on delivery. Each Party is responsible for ensuring its Project Manager attends scheduled meetings with reasonable consistency. Either Party may request an unscheduled meeting to address urgent matters, and each Party shall use reasonable endeavours to accommodate such requests.

5.7 Escalation

If the Parties' Project Managers are unable to resolve an issue arising in the course of an engagement within 5 Business Days of the issue being identified, either Project Manager may escalate the matter to a senior representative of each Party nominated for this purpose. The senior representatives shall meet or confer within 5 Business Days of escalation and use reasonable endeavours to resolve the issue. Escalation under this clause does not constitute a Dispute Notice for the purposes of clause 21.

5.8 Client Cooperation

Fruition's ability to perform the Services and meet Milestones is dependent on timely cooperation, decisions and approvals from the Client. Where Fruition's performance is delayed or adversely affected by the Client's failure to fulfil its obligations, Fruition is entitled to an equitable adjustment to the relevant timeline and Fees, which shall be documented by way of a Change Request under clause 4.

6. Subcontracting

6.1 Right to Subcontract

Fruition may engage subcontractors to perform all or part of the Services. Fruition shall not subcontract any material part of the Services without the Client's prior written consent, not to be unreasonably withheld or delayed. Where a Work Order identifies approved subcontractors, Fruition may engage those subcontractors without further consent.

6.2 Obligations Regarding Subcontractors

Where Fruition engages a subcontractor in connection with the Services:

(a) Fruition remains fully responsible to the Client for all obligations under the relevant Services Agreement, regardless of whether performed directly or through a subcontractor;

(b) Fruition shall ensure each subcontractor is bound by written obligations as to confidentiality, intellectual property, data protection and compliance with applicable laws that are no less protective than those imposed on Fruition under this Agreement;

(c) Fruition shall monitor each subcontractor's performance and promptly replace any subcontractor that fails to perform to the required standard; and

(d) Fruition shall ensure each subcontractor complies with all applicable laws, including privacy, anti-bribery and modern slavery legislation.

6.3 Removal of Subcontractors

The Client may, acting reasonably, request the removal of any subcontractor where it has substantiated grounds relating to security, confidentiality, quality or professional conduct. Fruition shall consider any such request in good faith and take prompt steps to replace the subcontractor where the grounds are substantiated.

7. Fees and Payment

7.1 Fees

In consideration for the provision of the Services, the Client shall pay Fruition the Fees in accordance with the applicable Services Agreement. Unless otherwise stated in a Work Order, Fees are denominated in Australian dollars and are exclusive of GST. Fees may be structured as a fixed fee for the Services or Deliverables, a time and materials rate, a monthly retainer, milestone-based payments, or any combination, as specified in the applicable Work Order.

7.2 Fee Adjustments

Fees specified in a Work Order may be increased by Fruition at the commencement of each new contract year by giving the Client not less than 30 days' prior written notice. Any such increase shall not exceed the greater of:

(a) 5% of the applicable Fee; and

(b) the percentage change in CPI for the immediately preceding 12-month period.

This clause does not prevent the Parties from agreeing a greater increase by way of a Change Request under clause 4.

7.3 Invoicing

Fruition shall issue invoices to the Client in accordance with the invoicing schedule in the applicable Work Order, or monthly in arrears where no schedule is specified. Each invoice shall set out in reasonable detail:

(a) the period to which it relates;

(b) the Services performed during that period;

(c) any Milestones achieved;

(d) the Fees charged, itemised where applicable;

(e) any expenses incurred and the basis for their reimbursement; and

(f) any applicable GST.

7.4 Expenses

The Client shall reimburse Fruition for all reasonable and properly documented out-of-pocket expenses incurred directly in performing the Services, subject to the following conditions:

(a) the Client has approved the relevant expense in writing before it is incurred, including by way of a general pre-approval in the Work Order;

(b) each expense is reasonable and consistent with the relevant pre-approval;

(c) Fruition provides the Client with original receipts or other satisfactory documentary evidence; and

(d) the expenses are separately and clearly itemised in Fruition's invoices.

7.5 GST

Unless otherwise stated, all amounts payable under a Services Agreement are exclusive of GST. If GST is payable on any supply, the recipient shall pay the supplier an additional amount equal to the GST payable, on receipt of a valid tax invoice. If any adjustment event arises, an appropriate adjustment shall be made between the Parties.

7.6 Payment Terms

All Fees and approved expenses are payable by the date specified in the applicable Work Order or invoice, or within 30 days of the invoice date where no due date is specified. Payments shall be made by electronic funds transfer to the account details notified by Fruition, in full and without set-off, counterclaim, deduction or withholding, except as required by applicable law. If any deduction or withholding is required by law, the Client shall gross up the payment so that Fruition receives the full amount it would otherwise have received. Time is of the essence in relation to all payment obligations.

7.7 Default Interest

If the Client fails to pay any amount by the due date, Fruition may charge interest on the overdue amount at the Default Rate, accruing daily from the due date until the date of actual payment in full. Where the Client has raised a bona fide dispute under clause 7.8 in respect of all or part of an invoice, interest under this clause continues to accrue on any amount that is ultimately determined (by agreement between the Parties, by a mediator under clause 21, or by a court of competent jurisdiction) to have been properly payable, from the original due date until payment. The right to charge interest is cumulative with, and without prejudice to, any other right or remedy available to Fruition, including the right to suspend Services under clause 2.8.

7.8 Disputed Invoices

If the Client disputes all or any part of an invoice in good faith, it shall:

(a) notify Fruition in writing within 10 Business Days of receipt, setting out the disputed amount and the basis for the dispute; and

(b) pay any undisputed portion of the invoice by the due date.

Failure to dispute an invoice within 10 Business Days of receipt constitutes acceptance of that invoice in full. Fruition shall review any timely dispute within 5 Business Days and either issue a credit note for any amount it accepts is incorrect or provide a written explanation with supporting documentation. If the Parties are unable to resolve the dispute through this exchange, it shall be referred to and resolved under clause 21.

7.9 Record Keeping and Audit Rights

Where the Services are charged on a time and materials basis, Fruition shall maintain accurate records of time spent and materials used, in sufficient detail to substantiate each invoice, for a minimum of 3 years from the date of the relevant invoice. The Client may, on not less than 10 Business Days' prior written notice, appoint an independent auditor to verify the accuracy of time-and-materials invoices. The Client shall bear all audit costs unless the audit reveals an overcharge of more than 5%, in which case Fruition shall bear the reasonable costs of that audit and promptly reimburse the overcharged amount together with interest at the Default Rate from the date of the original overpayment.

7.10 Payment on Account

Fruition may require the Client to pay a deposit or advance payment on account of Fees before commencing or continuing any Services, as specified in the applicable Work Order or as otherwise notified by Fruition in writing. Where a deposit or advance payment has been paid: (a) it will be held by Fruition and applied against the Client's liability for Fees as they fall due; (b) any unused portion will be refunded to the Client upon termination or expiry of the relevant Services Agreement, after deduction of all amounts owed to Fruition; and (c) Fruition's obligation to perform Services is conditional on receipt of the deposit or advance payment where required.

7.11 Set-Off and Withholding

The Client shall make all payments under this Agreement free and clear of, and without any deduction or withholding on account of, any tax, levy, deduction, charge or withholding, except to the extent required by applicable law. The Client shall have no right to set off, withhold, counterclaim or deduct any amount against any amount payable to Fruition under this Agreement, whether or not the Client claims a right to damages or other amounts from Fruition. Any right of set-off the Client may otherwise have is expressly waived.

8. Client Obligations

8.1 General Obligations

The Client acknowledges that Fruition's ability to perform the Services is dependent on the Client meeting its obligations under this clause 8. The Client shall perform all of its obligations in a timely, complete and professional manner and, without limiting the foregoing, shall:

- (a) provide Fruition with timely access to all Client Materials, systems, facilities, Personnel and information reasonably required to perform the Services;
- (b) make all decisions and provide all approvals required under this Agreement within the timeframes specified or, where not specified, within 3 Business Days of a request from Fruition;
- (c) ensure that its Personnel involved in the Services are available, cooperative and responsive to Fruition's reasonable requests;
- (d) appoint and maintain an authorised Project Manager throughout the Contract Period; and
- (e) comply with all applicable laws in the performance of its obligations.

8.2 Client Data and Materials

The Client is solely responsible for the quality, accuracy, completeness, currency and lawfulness of all Client Materials. Fruition is not responsible for any error, omission, failure or defect in the Services arising from inaccurate, incomplete, outdated or unlawful Client Materials. The Client warrants that it has obtained all rights, consents and authorisations required to provide the Client Materials to Fruition and to permit Fruition to use them for the purposes of this Agreement, without infringing any rights of any third party.

8.3 Impact of Client Default

If Fruition's performance is delayed or adversely affected by the Client's failure to fulfil its obligations under this clause 8, Fruition is entitled to:

- (a) an equitable extension of time to perform the relevant Services;
- (b) a reasonable adjustment to the Fees to reflect any additional costs incurred by Fruition; and
- (c) recovery of any additional Losses directly caused by the Client's default.

Any such adjustment shall be documented by way of a Change Request under clause 4. Fruition must use reasonable endeavours to mitigate any costs or delays resulting from the Client's default.

9. Term and Contract Period

9.1 Commencement and Duration

Each Services Agreement commences on the Commencement Date specified in the applicable Work Order and continues for the Contract Period, unless terminated earlier in accordance with clause 15.

9.2 Rollover

If Fruition continues to provide, and the Client continues to accept, Services after expiry of the Contract Period and neither Party has given written notice of an intention not to renew, the relevant Services Agreement will continue on a rolling month-to-month basis on and subject to this Agreement, until either Party gives the other not less than 30 days' written notice of termination.

10. Intellectual Property

10.1 Pre-Existing Intellectual Property

Each Party retains all Intellectual Property it owned or held a licence to prior to the Commencement Date, or that it creates independently of and outside the scope of any Services Agreement. Nothing in this Agreement assigns, transfers, encumbers or otherwise affects any such pre-existing Intellectual Property. Where a Party provides the other with access to materials in which that Party's Intellectual Property subsists (including Client Materials), ownership of that Intellectual Property remains with the providing Party at all times, and the recipient Party acquires no ownership interest by reason of such access.

10.2 Ownership of Client Materials

The Client owns all Intellectual Property in the Client Materials. Nothing in this Agreement transfers, assigns or encumbers any ownership of the Client Materials or the Intellectual Property in them to Fruition. Fruition expressly acknowledges that it has no claim to any Client Materials or the Intellectual Property subsisting in them. The Client grants Fruition a non-exclusive, royalty-free, non-transferable, revocable licence during the Contract Period to access and use the Client Materials solely to the extent necessary to perform the Services in accordance with the applicable Services Agreement.

10.3 Ownership of Works

Fruition is and remains the sole and exclusive owner of all Works and all Intellectual Property subsisting in them, including all updates, modifications, enhancements and derivative works, at all times during and after the Contract Period. The Client acknowledges that the Works are not created as works for hire for the purposes of any applicable law. To the extent that any Intellectual Property in the Works vests in the Client or any third party by operation of law or otherwise, the Client irrevocably assigns (by way of present assignment of existing rights and agreement to assign future rights) all such Intellectual Property to Fruition with full title guarantee, free from all encumbrances. The Client shall, on request and at no charge, promptly execute any documents and take all steps reasonably required by Fruition to give effect to, perfect or register this assignment in any jurisdiction.

10.4 Licence to Client

Upon full and final payment of all Fees and expenses due under the applicable Services Agreement, Fruition grants the Client a non-exclusive, royalty-free, perpetual licence to use, reproduce and adapt the Works (excluding Pre-Existing Works and Third Party Works) solely for the Client's own internal business purposes. This licence does not extend to commercial exploitation, resale, redistribution or use for the benefit of any third party. The Client may sublicense this right to its Related Parties solely to the extent necessary for those Related Parties to support the Client's internal use, provided those Related Parties are bound by terms no less protective than those in this clause. Where Pre-Existing Works are incorporated into the Works, this licence extends to those Pre-Existing Works solely as incorporated and to the extent necessary to use the Works for their intended purpose.

The licence granted under this clause terminates automatically if the Client commits a material breach of this Agreement (including any breach of clauses 7 (Fees and Payment), 10 (Intellectual Property), 17 (Confidentiality) or 18 (Data Protection and Privacy)) and fails to remedy that breach within 30 days of written notice from Fruition. Upon termination of the licence, the Client shall immediately cease all use of the Works, return or destroy all copies in its possession or control, and certify in writing within 10 Business Days that it has done so.

10.5 Data Analytics Licence

Fruition may use Client Materials and data derived from the performance of the Services in anonymised and aggregated form for the purposes of: (a) improving Fruition's internal methodologies, tools, products and services; and (b) producing anonymised industry benchmarking and analytics. Fruition shall implement appropriate technical de-identification measures before using any Client Materials for these purposes and shall not disclose any such information in a form that could reasonably be used to identify the Client, its customers or any individual.

10.6 Third Party Works

The Client acknowledges that:

- (a) Fruition can only assign Intellectual Property that it actually owns;
- (b) in providing the Services, Fruition may incorporate or use Third Party Works; and
- (c) it may not always be possible to obtain an assignment of Intellectual Property in Third Party Works, and restrictions and limitations on use may apply.

Before incorporating any material Third Party Works, Fruition shall notify the Client in writing and identify any material restrictions. At the Client's written request, Fruition shall use reasonable endeavours to obtain an assignment of, or licence to use, the Third Party Works. All associated costs are borne by the Client. The Client must at all times comply with conditions on use notified by Fruition.

10.7 Joint Development

Where the Parties jointly create Intellectual Property in connection with the Services, the Parties shall discuss and agree in writing on ownership, licensing and commercialisation of that jointly created Intellectual Property. In the absence of written agreement, all jointly created Intellectual Property vests in Fruition, subject to the Client's licence under clause 10.4.

10.8 Fruition Intellectual Property

Fruition retains all rights, title and interest in its own Intellectual Property, including all source code, object code, APIs, make-up files, specifications, designs, processes, techniques, methodologies, improvements and proprietary software. The Client shall not, without Fruition's prior written consent:

- (a) copy, reproduce, republish, disassemble, decompile, decrypt, reverse engineer, create derivative works from or otherwise attempt to derive the source code or trade secrets of any Fruition Intellectual Property;
- (b) remove, alter or obscure any proprietary notice, copyright notice or trade mark embedded in any Fruition Intellectual Property; or
- (c) sell, assign, mortgage, encumber or otherwise deal with any Fruition Intellectual Property.

10.9 Open Source Software

Fruition shall not incorporate open-source software into any Deliverable or Works if doing so would: (a) require disclosure of any proprietary or confidential source code; or (b) impose obligations on the Client inconsistent with the Client's rights under this clause 10, without the Client's prior written consent. Where open-source software is incorporated, Fruition shall notify the Client in writing with details of the applicable licence terms.

10.10 Moral Rights

Each Party shall, to the maximum extent permitted by applicable law, ensure that its Personnel who create works in connection with this Agreement provide a written consent to any act or omission that would otherwise constitute an infringement of their moral rights in those works, to the extent necessary to allow the other Party to exercise its rights under this Agreement.

10.11 Self-Promotion

Subject to the Client's prior written consent (not to be unreasonably withheld) and Fruition's obligations under clause 17, Fruition may use the Works and the Client's name or logo for promotional purposes, including in portfolios, case studies, award submissions and capability statements. Fruition shall provide the Client with reasonable advance notice of any specific publication in which the Client is identified.

10.12 Further Assurance

Each Party shall, at the requesting Party's cost, execute all further documents and take all further actions reasonably required to give full effect to, perfect, register or enforce any Intellectual Property right under this clause 10 in any jurisdiction.

10.13 Survival

The provisions of this clause 10 survive termination or expiry of the applicable Services Agreement.

11. Warranties and Representations

11.1 Mutual Capacity Warranties

Each Party represents and warrants to the other, as at the Effective Date and continuing throughout the Contract Period, that:

(a) it is duly incorporated and validly existing under the laws of its jurisdiction of incorporation;

(b) it has full legal capacity and authority to execute, deliver and perform this Agreement;

(c) this Agreement has been duly authorised by all necessary corporate or other action and constitutes its legal, valid and binding obligation, enforceable in accordance with its terms, subject to applicable laws affecting creditors' rights generally;

(d) the execution, delivery and performance of this Agreement does not and will not: (i) conflict with or violate its constitutional documents; (ii) breach any agreement, obligation or arrangement by which it is bound; or (iii) contravene any applicable law;

(e) no Insolvency Event has occurred or is pending or, to its knowledge, threatened in relation to it; and

(f) there are no pending or, to its knowledge, threatened legal proceedings, regulatory investigations or claims that would materially and adversely affect its ability to perform its obligations under this Agreement.

11.2 Warranties by Fruition

Fruition additionally represents and warrants to the Client that, as at the Effective Date and at all times during each Contract Period:

(a) it has, and will throughout the Contract Period maintain in good standing, all licences, registrations, accreditations and authorisations required by applicable law to carry on its business and to provide the Services;

(b) the Services will be performed by suitably qualified and experienced Personnel who have the expertise appropriate to the specific tasks assigned to them;

(c) Fruition has no knowledge of any conflict of interest between its obligations to the Client under this Agreement and any obligation owed to a third party that would materially affect its ability to perform the Services, and Fruition shall promptly notify the Client in writing if any such conflict arises during the Contract Period;

(d) to the best of Fruition's knowledge, the Works (excluding elements directed or supplied by the Client) will not, at the time of delivery, infringe the Intellectual Property rights or moral rights of any third party; and

(e) any software or code forming part of the Deliverables will, at the time of Acceptance, substantially conform to the Specification in all material respects and will not intentionally contain viruses, malware or other code designed to damage or disable the Client's systems.

11.3 Warranties by the Client

The Client additionally represents and warrants to Fruition that:

(a) the provision and use of Client Materials in accordance with this Agreement will not violate the Intellectual Property rights, privacy rights, confidentiality rights or any other rights of any third party, and the Client has obtained all consents, licences and authorisations required to grant Fruition the rights in clause 10.2;

(b) all Client Materials provided to Fruition are accurate, complete and up to date in all material respects as at the time of provision, and the Client will promptly notify Fruition in writing if it becomes aware that any previously provided Client Materials are inaccurate, incomplete or misleading;

(c) the Client's systems, data and materials provided to Fruition are, to the best of the Client's knowledge, free from viruses, malware or other harmful code that could affect Fruition's systems, Personnel or data;

(d) the Client has not withheld from Fruition any information, requirement or constraint known to the Client that is material to the performance of the Services or the production of the Deliverables; and

(e) the performance of its obligations does not breach any other agreement, court order or regulatory requirement by which it is bound.

Fruition's obligations under this Agreement are given in reliance on the accuracy of the Client's warranties in this clause 11.3. Any inaccuracy or breach of those warranties that adversely affects Fruition's performance constitutes a material breach by the Client and entitles Fruition to a corresponding adjustment to Fees and timelines under clause 4.

11.4 No Other Warranties and Australian Consumer Law

To the maximum extent permitted by law, and except as expressly set out in this Agreement, all conditions, warranties, terms, representations and guarantees (whether express, implied by statute or common law, or arising from custom or trade) in relation to this Agreement, the Services or any Deliverable are excluded. Without limitation, Fruition makes no warranty that the Services or Deliverables will be free from minor errors or interruptions or will operate in combination with any specific hardware, software, system or data not specified by Fruition in writing.

Nothing in this Agreement excludes, restricts or modifies any guarantee, condition, warranty, right or remedy that the ACL or any other applicable law confers on the Client and that cannot lawfully be excluded, restricted or modified (Non-Excludable Right). If Fruition is liable for a breach of a Non-Excludable Right in relation to services that are not of a kind ordinarily acquired for personal, domestic or household use or consumption, Fruition's liability is, to the extent permitted by section 64A of the ACL, limited at Fruition's option to any one or more of the following: (a) the supplying of the Services again; or (b) the payment of the cost of having the Services supplied again. Where the relevant breach concerns goods rather than services, Fruition's liability is, at Fruition's option, limited to replacement, repair or supply of equivalent goods or the cost thereof.

11.5 Notification and Survival

Each Party shall promptly notify the other in writing if any warranty or representation given under this clause 11 becomes untrue, inaccurate or misleading in any material respect. The warranties in this clause survive termination or expiry of the applicable Services Agreement for a period of 12 months.

12. Indemnity

12.1 Indemnity by the Client

The Client shall indemnify, defend and keep indemnified Fruition and its Related Parties against all Losses arising out of or in connection with:

(a) any material breach by the Client of any obligation, warranty or representation under this Agreement;

(b) any act or omission of the Client or its Personnel constituting negligence, fraud, wilful misconduct or unlawful conduct in connection with this Agreement;

(c) the Client's use of the Deliverables or Works in a manner not contemplated or authorised by this Agreement;

(d) any inaccuracy, incompleteness or unlawfulness in any Client Materials provided to Fruition;

(e) any third-party claim arising from the Client Materials, including any claim that Client Materials infringe a third party's Intellectual Property rights, privacy rights or other rights;

(f) any failure by the Client to obtain consents, licences or authorisations required for Fruition to use the Client Materials; or

(g) any claim by a third party (including the Client's own customers or Personnel) arising from the Client's use, modification, distribution or exploitation of the Deliverables or Works.

12.2 Indemnity by Fruition

Subject to clause 13 (Limitation of Liability), Fruition shall indemnify and keep indemnified the Client and its Related Parties against Losses arising directly from:

(a) Fruition's fraud or wilful misconduct in connection with the Services;

(b) any third-party claim that the Works (excluding Client Materials, elements specifically directed by the Client, and Third Party Works) infringe that third party's registered Intellectual Property rights in Australia and in any other jurisdiction expressly specified in the applicable Work Order, provided that: (i) the Client promptly notifies Fruition of the claim; (ii) the Client gives Fruition sole control of the defence and settlement; and (iii) the Client provides all reasonable assistance in the defence at Fruition's cost; or

(c) any breach by Fruition of clause 18 (Data Protection and Privacy) that results in a Notifiable Data Breach affecting the Client or its Personnel.

This indemnity does not apply where the alleged infringement under sub-clause (b) arises from: (i) any modification of the Works by or at the direction of the Client; (ii) use of the Works in combination with systems, data or materials not supplied or approved by Fruition; (iii) the Client's failure to use an updated version of the Works provided by Fruition; or (iv) compliance with the Client's specifications or requirements.

12.3 Proportionate Liability

An indemnity under this clause 12 does not apply to the extent that the relevant Losses are caused or contributed to by the negligence, fraud, wilful misconduct or breach of this Agreement by the Party seeking indemnification. Where both Parties have contributed to a Loss, the indemnity obligations shall be reduced proportionately to reflect each Party's relative contribution.

12.4 Notification and Defence

The indemnified Party shall:

(a) notify the indemnifying Party in writing within 10 Business Days of becoming aware of any claim or circumstance giving rise to the indemnity;

(b) not make any admission of liability or settle or compromise any such claim without the indemnifying Party's prior written consent; and

(c) provide the indemnifying Party with reasonable cooperation in the investigation and defence of any claim.

Failure to give timely notice does not relieve the indemnifying Party of its obligations except to the extent it is materially prejudiced by the delay. The indemnifying Party may, at its cost, assume control of the defence of any claim, provided the indemnified Party retains the right to participate with its own counsel at its own cost.

12.5 Survival

The provisions of this clause 12 survive termination or expiry of the applicable Services Agreement.

13. Limitation of Liability

13.1 Carve-Outs

Nothing in this Agreement limits or excludes:

(a) either Party's liability for death or personal injury caused by its negligence;

(b) either Party's liability for fraud, fraudulent misrepresentation, deliberate or wilful misconduct, or wilful breach of this Agreement;

(c) the Client's liability under clause 12.1 (Indemnity by the Client);

(d) the Client's obligation to pay Fees, expenses, default interest and other amounts properly owing to Fruition under this Agreement;

(e) the Client's liability for breach of clause 10 (Intellectual Property) in respect of the Client's use of the Works or Fruition Intellectual Property, or for breach of clause 20 (Non-Solicitation);

(f) either Party's liability for breach of clause 17 (Confidentiality) or clause 18 (Data Protection and Privacy), to the extent the breach is caused by deliberate or wilful misconduct;

(g) either Party's liability for breach of a Non-Excludable Right (as defined in clause 11.4), to the extent the liability cannot lawfully be limited; or

(h) any other liability that cannot be limited or excluded by applicable law.

13.2 Liability Cap

Subject to clause 13.1, each Party's aggregate liability to the other arising out of or in connection with a Services Agreement, whether in contract (including any repudiatory or fundamental breach), tort (including negligence), under statute, in equity or otherwise, shall not exceed an amount equal to the total Fees paid (and properly payable) by the Client to Fruition under the applicable Services Agreement in the 12-month period immediately preceding the first event giving rise to the claim, or such lesser amount as is specified in the Work Order. For the avoidance of doubt, where the Services Agreement has been in effect for less than 12 months at the time the relevant event arises, the cap is the total Fees paid (and properly payable) under that Services Agreement up to that date. A series of connected or related claims or events giving rise to the same or related loss is treated as a single claim for the purpose of this cap. The cap applies separately to each Services Agreement. For the avoidance of doubt, the cap in this clause does not apply to any liability falling within clause 13.1.

13.3 Exclusion of Consequential Loss

Subject to clause 13.1, neither Party shall be liable to the other for any of the following, whether or not such loss was foreseeable or the Party in breach had been advised of its possibility:

(a) loss of revenue, profit or anticipated profit;

(b) loss of business, contracts, opportunities or goodwill;

(c) loss of anticipated savings;

(d) loss, corruption or degradation of data or information;

(e) increased costs of working or costs of obtaining alternative services;

(f) economic loss or business interruption; or

(g) indirect, special, punitive or consequential loss of any kind.

13.4 Client-Directed Activities

Fruition has no liability to the Client for any loss, claim or defect arising from:

(a) any variation to the Services requested, directed or approved in writing by the Client;

(b) the Client's failure to fulfil its obligations under clause 8;

(c) inaccurate, incomplete or unlawful Client Materials; or

(d) Fruition's compliance with the Client's specific written instructions.

13.5 Mitigation

Each Party shall take all reasonable steps to mitigate any loss or damage it suffers in connection with this Agreement. A failure to mitigate shall reduce any award of damages or indemnification proportionately.

13.6 Risk Allocation

The Parties acknowledge that the limitations and exclusions in this clause 13 reflect a commercially reasonable allocation of risk, negotiated at arm's length between sophisticated commercial parties. This allocation takes into account the structure and level of the Fees payable, the availability of insurance and the Parties' respective abilities to bear and insure against loss. Any modification to this allocation would require a corresponding adjustment to the Fees.

13.7 Time Bar on Claims

Subject to clause 13.1, the Client shall give Fruition written notice of any claim under or in connection with this Agreement within 12 months after the Client first becomes aware (or ought reasonably to have become aware) of the facts, matters or circumstances giving rise to the claim. Any claim not so notified is permanently and irrevocably waived and released, and Fruition has no liability in respect of it. The notice must set out, in reasonable detail, the nature of the claim, the legal basis on which it is made, and the amount claimed or estimated to be at risk.

13.8 Notification of Claim Circumstances

Each Party shall promptly notify the other in writing upon becoming aware of any circumstance that it reasonably considers may give rise to a claim under or in connection with this Agreement, and shall provide the other with such information and assistance as is reasonably requested to assess and respond to that circumstance. Failure to give a notice required by this clause does not of itself extinguish a claim, but the affected Party may rely on any prejudice caused by the delay in reducing the amount of any liability it would otherwise have.

13.9 Survival

The provisions of this clause 13 survive termination or expiry of the applicable Services Agreement.

14. Insurance

14.1 Required Insurance

Fruition shall hold and maintain, throughout the Contract Period and for not less than 3 years after its expiry or termination, the following insurance policies with an insurer of good financial standing:

- (a) professional indemnity (errors and omissions) insurance of not less than AUD 5,000,000 per claim and in the aggregate, covering Fruition's liability for professional negligence, errors, omissions and breach of professional duty;
- (b) public and products liability insurance of not less than AUD 20,000,000 per occurrence and in the aggregate;
- (c) workers' compensation insurance in the amounts required by applicable law in respect of all of Fruition's employees (if any) engaged in connection with the Services; and
- (d) cyber liability insurance of not less than AUD 1,000,000 per claim and in the aggregate, covering losses arising from cyber incidents, data breaches and system security failures.

14.2 Evidence and Notification

Fruition shall, upon the Client's request and prior to commencement of each Work Order, provide the Client with a current certificate of currency or other satisfactory evidence of each insurance policy required under clause 14.1. Fruition shall promptly notify the Client if any required policy lapses, is cancelled, is materially varied in a manner that reduces coverage, or if Fruition becomes aware of any circumstance that may give rise to a claim under any such policy.

14.3 Compliance

Fruition shall comply with all conditions of its insurance policies, promptly notify its insurer of any actual or potential claim arising in connection with the Services, and not do or omit to do anything that would invalidate or avoid coverage under any required insurance policy.

15. Termination

15.1 Termination by Notice

Either Party may terminate a Services Agreement at any time, without cause, by giving the other not less than 60 days' prior written notice. During any notice period, both Parties shall continue to perform their respective obligations unless they otherwise agree in writing.

Where a Work Order specifies an early termination fee, that fee is payable by the Client to Fruition in addition to all other amounts otherwise payable, if the Client terminates the relevant Services Agreement under this clause in the circumstances specified in the Work Order. The Parties agree any such fee represents a genuine pre-estimate of the loss Fruition would suffer from early termination, including unrecouped set-up, on-boarding and resource commitments, and is not a penalty.

15.2 Termination by Mutual Agreement

The Parties may, at any time, agree in writing to terminate a Services Agreement on such terms as they may agree. The provisions of clauses 15.5 (Effect of Termination), 15.7 (Transition Assistance) and 15.8 (Survival) apply unless the Parties expressly agree otherwise.

15.3 Termination for Cause

Either Party (the Non-Defaulting Party) may terminate a Services Agreement with immediate effect by giving written notice to the other (the Defaulting Party) in any of the following circumstances:

- (a) the Defaulting Party commits a material breach of the Services Agreement that is not capable of remedy;
- (b) the Defaulting Party commits a material breach that is capable of remedy and fails to remedy it to the Non-Defaulting Party's reasonable satisfaction within 10 Business Days of receiving written notice from the Non-Defaulting Party specifying the breach and requiring it to be remedied; or
- (c) an Insolvency Event occurs in relation to the Defaulting Party.

In addition to the foregoing, Fruition may terminate a Services Agreement with immediate effect by written notice if the Client fails to pay any undisputed amount within 10 Business Days after the due date and that failure continues for 5 Business Days after Fruition has issued a written demand for payment.

For the purposes of this clause, a material breach includes, without limitation: a persistent pattern of non-material breaches that, taken together, have a material adverse effect on the Non-Defaulting Party; any failure by the Client to make payment that is not bona fide disputed under clause 7.8; a material failure to meet Service Levels that is not remedied within a reasonable time; a breach of clause 17 (Confidentiality), clause 18 (Data Protection and Privacy), clause 19 (Compliance) or clause 20 (Non-Solicitation); and any act or omission that fundamentally undermines the trust and confidence necessary to maintain the commercial relationship.

Where Fruition terminates a Services Agreement under this clause 15.3: (a) all Fees for Services properly performed and expenses properly incurred up to and including the termination date become immediately due and payable; (b) any Fees, charges or minimum commitments scheduled under the Work Order to be paid over the remainder of the Contract Period, in respect of any Services that Fruition was committed to deliver but is unable to deliver as a result of the termination, become immediately due and payable as liquidated damages, less any amounts Fruition could reasonably be expected to mitigate; and (c) Fruition retains all other rights and remedies under this Agreement or at law, including the right to recover damages. The Parties agree that the amount payable under sub-paragraph (b) represents a genuine pre-estimate of Fruition's loss arising from the early termination.

15.4 Termination for Force Majeure

Either Party may terminate a Services Agreement by giving not less than 20 Business Days' written notice where a Force Majeure Event has continued for more than 60 consecutive days and has not been resolved.

15.5 Effect of Termination

Upon termination or expiry of a Services Agreement for any reason:

(a) Fruition shall promptly return or deliver to the Client all property, Client Materials, data, access credentials and equipment belonging to the Client in Fruition's possession or control, together with a written inventory of all items returned or destroyed;

(b) the Client shall, within 5 Business Days of the date of termination, pay all amounts due and owing to Fruition under the terminated Services Agreement, including all accrued Fees and expenses (whether or not invoiced at that date), pro-rated to the date of termination;

(c) each Party shall promptly return or securely destroy all Confidential Information of the other Party in its possession or control, subject to any statutory retention obligations, and certify in writing within 10 Business Days that it has done so;

(d) Fruition shall, at the Client's request and at no additional cost, provide the Client with a written summary of the status of all ongoing work and any outstanding matters as at the termination date; and

(e) termination does not affect any accrued rights or obligations of either Party existing as at the date of termination, nor any right of either Party to claim damages for breach of this Agreement occurring before termination.

15.6 Effect of Client-Initiated Early Termination

Where the Client terminates a Services Agreement under clause 15.1, the Client shall, in addition to amounts payable under clause 15.5(b):

(a) pay Fruition for all work in progress at the termination date that cannot reasonably be redeployed by Fruition to other engagements, calculated at Fruition's applicable rates;

(b) reimburse Fruition for all cancellation fees, break costs, wind-down costs and third-party costs (including subcontractor costs) reasonably and properly incurred by Fruition as a direct result of the termination, to the extent those costs cannot reasonably be mitigated; and

(c) pay any fees associated with transition assistance provided under clause 15.7.

15.7 Transition Assistance

Upon expiry or termination of a Services Agreement for any reason, Fruition shall, on the Client's written request, provide reasonable transition assistance to facilitate an orderly transfer of the Services to the Client or to an incoming service provider nominated by the Client. Transition assistance shall include, as reasonably required:

(a) delivery of all documentation, source code, data, access credentials, system configurations, API keys and any other materials or information necessary for the Client or incoming service provider to take over and operate the Services;

(b) preparation and delivery of a detailed written transition plan within 10 Business Days of the Client's request, setting out proposed timelines, responsibilities and handover steps;

(c) knowledge transfer sessions, briefings and reasonable Q&A support for the Client's Personnel or the incoming service provider;

(d) continued operation of the Services in a reduced or maintaining capacity during the transition period as agreed by the Parties in writing; and

(e) such other assistance as is reasonably necessary to ensure continuity and avoid disruption to the Client's operations.

The transition period shall not exceed 3 months from the termination or expiry date unless the Parties agree a longer period in writing. Fruition is entitled to charge at its then-current rates for all transition assistance provided under this clause from the date of the Client's request. Fruition shall provide a written estimate of the transition assistance costs within 5 Business Days of the Client's request.

15.8 Survival

The following provisions survive termination or expiry of each Services Agreement, together with any other provision that by its nature or express terms is intended to survive: clauses 1 (Definitions and Interpretation), 7 (Fees and Payment) in respect of accrued obligations, 10 (Intellectual Property), 11.5 (Notification and Survival), 12 (Indemnity), 13 (Limitation of Liability), 14 (Insurance) in respect of the run-off period, 15.5 to 15.8, 17 (Confidentiality), 18 (Data Protection and Privacy), 19 (Compliance), 20 (Non-Solicitation), 21 (Dispute Resolution), 22 (Notices) and 23 (General Provisions). Survival continues for the periods expressly provided or, where no period is specified, indefinitely.

16. Force Majeure

16.1 Suspension of Obligations

Neither Party is in breach of this Agreement, nor liable to the other, for any failure or delay in performing its obligations to the extent that failure or delay is directly caused by a Force Majeure Event, provided that the affected Party:

(a) takes all reasonable steps to minimise the impact of the Force Majeure Event and to resume full performance as soon as practicable;

(b) notifies the other Party in writing of the nature, extent and expected duration of the Force Majeure Event as soon as reasonably practicable after becoming aware of it; and

(c) continues to perform such of its obligations as are not affected by the Force Majeure Event.

16.2 Effect on Payment

A Force Majeure Event does not suspend the Client's obligation to pay Fees for Services properly performed prior to the commencement of the Force Majeure Event. Where a Force Majeure Event prevents Fruition from performing Services, the Client's obligation to pay Fees for those unperformed Services is suspended for the duration of the Force Majeure Event.

16.3 Prolonged Force Majeure

If a Force Majeure Event continues for more than 60 consecutive days:

(a) either Party may terminate the affected Services Agreement by giving not less than 20 Business Days' written notice; or

(b) the Parties may agree in writing to suspend all or any of their obligations under the affected Services Agreement for the duration of the Force Majeure Event, on terms (including as to payment) to be agreed.

16.4 Cessation

The protections under this clause cease to apply in respect of a Force Majeure Event when: (a) the Force Majeure Event no longer prevents or materially delays the affected Party's performance; and (b) the affected Party has given written notice to the other confirming that the Force Majeure Event has ceased and setting out its plan for resuming full performance.

17. Confidentiality

17.1 Confidentiality Obligation

Each Party (as Recipient) shall hold all Confidential Information of the other Party (as Discloser) in the strictest confidence and shall not directly or indirectly disclose, communicate, copy, adapt, use, exploit or permit access to any Confidential Information except:

(a) with the Discloser's prior written consent;

(b) to Personnel of the Recipient who have a genuine operational need to know for the sole purpose of performing the Recipient's obligations or exercising its rights under this Agreement, and who:

(i) have been informed of the confidential nature of the information; and (ii) are bound by written confidentiality obligations no less protective than those in this clause 17;

(c) to Related Parties for the purposes of the Recipient's legal, financial, insurance, audit, regulatory or governance obligations, provided those Related Parties are bound by written obligations no less protective than those in this clause 17, and the Recipient remains jointly and severally responsible for any breach by those Related Parties;

(d) to the extent strictly required by applicable law, a court order or a regulatory or governmental authority with jurisdiction over the Recipient, subject to clause 17.3; or

(e) if the specific information is, at the time of disclosure, already in the public domain through no act or omission of the Recipient.

17.2 Standard of Care and Security

Each Party shall protect the other's Confidential Information using:

(a) at least the same degree of care, protection and controls it applies to its own confidential information of equivalent or greater sensitivity; and

(b) in any event, technical and organisational security measures that are appropriate to the nature and sensitivity of the Confidential Information and consistent with a recognised information security standard, including, as applicable, access controls, encryption of data in transit and at rest, network security, physical security controls and regular security assessments.

Each Party shall promptly (and in any event within 48 hours) notify the other upon becoming aware of any actual or reasonably suspected: (a) unauthorised access to, disclosure of or use of the other's Confidential Information; or (b) security incident affecting systems on which the other's Confidential Information is stored or processed. Such notification shall include, to the extent then known, a description of the incident, the Confidential Information affected and the steps being taken to contain and remediate it.

17.3 Compelled Disclosure

If a Recipient is required by applicable law, a court or governmental or regulatory authority to disclose Confidential Information, the Recipient shall, to the maximum extent permitted by law:

(a) give the Discloser the maximum practicable advance written notice before making any disclosure, to enable the Discloser to seek a protective order, exemption or other appropriate relief;

(b) cooperate fully with the Discloser and provide all reasonable assistance in seeking such relief at the Discloser's cost; and

(c) disclose only the minimum portion of the Confidential Information that is strictly legally required, and use reasonable efforts to obtain confidential treatment for any Confidential Information so disclosed.

17.4 Personnel Obligations

The Recipient shall ensure that:

(a) all Personnel who are given access to Confidential Information are informed in advance of the confidential nature of the information and their obligations under this clause 17;

(b) access to Confidential Information is restricted to those Personnel who genuinely require it and is revoked promptly when no longer needed;

(c) upon any Personnel member ceasing to be employed or engaged by the Recipient, the Recipient takes prompt steps to retrieve or secure access to Confidential Information held by that individual; and

(d) the Recipient maintains appropriate procedures to prevent Personnel from misappropriating or misusing Confidential Information following the end of their engagement.

17.5 Return and Destruction

Upon the Discloser's written request (at any time) or upon termination or expiry of a Services Agreement, the Recipient shall, within 10 Business Days:

(a) return to the Discloser, or securely destroy, all Confidential Information of the Discloser (and all copies, extracts and derivatives) in its possession, custody or control, in whatever form or medium;

(b) provide the Discloser with written certification signed by an authorised representative confirming that all such Confidential Information has been returned or destroyed; and

(c) ensure that the same obligations are fulfilled by any Related Parties or Personnel to whom Confidential Information was disclosed.

One archival copy of Confidential Information may be retained solely to the extent, and for the period, required by applicable law or regulatory obligation, subject to the ongoing obligations of this clause 17.

17.6 Injunctive Relief

Each Party acknowledges that any breach or threatened breach of this clause 17 would cause immediate, irreparable harm for which monetary damages alone would be an inadequate remedy, and that the quantification of such harm would be extremely difficult. Accordingly, the injured Party is entitled to seek urgent injunctive, mandatory, prohibitory or other equitable relief from any court of competent jurisdiction, in addition to any other remedy available at law or in equity, without being required to: (a) prove actual damage or loss; (b) provide any monetary undertaking as to damages; or (c) comply with the dispute resolution procedure in clause 21.

17.7 Survival

The obligations in this clause 17 survive termination or expiry of any Services Agreement for 5 years from the date of last disclosure. This time limit does not apply to Confidential Information constituting trade secrets or technical know-how of the Discloser, in respect of which the obligations continue for so long as that information retains its character as a trade secret or proprietary know-how.

18. Data Protection and Privacy

18.1 Compliance

Each Party shall comply with all applicable privacy and data protection laws when collecting, storing, using, disclosing or otherwise processing Personal Information in connection with this Agreement, including the Privacy Act 1988 (Cth) and all applicable Australian Privacy Principles.

18.2 Data Processing Obligations

To the extent that Fruition processes Personal Information on behalf of the Client in providing the Services, Fruition shall:

(a) process Personal Information only for the purposes of providing the Services and in accordance with the Client's documented instructions, and not for any other purpose without the Client's prior written consent;

(b) implement and maintain appropriate technical and organisational measures to protect Personal Information against unauthorised or unlawful processing, accidental loss, destruction, alteration or disclosure;

(c) ensure that Personnel authorised to process Personal Information are bound by appropriate written confidentiality obligations;

(d) engage sub-processors to process Personal Information only on the following basis: (i) Fruition gives the Client at least 30 days' prior written notice identifying the proposed sub-processor and the nature of the processing; (ii) Fruition ensures the sub-processor is bound by written data protection obligations no less protective than those imposed on Fruition under this Agreement; and (iii) the Client may object to the appointment within that 30-day period on reasonable security or compliance grounds, in which case the Parties shall consult in good faith and Fruition may, at its option, either propose an alternative sub-processor or terminate the affected Services Agreement without liability;

(e) assist the Client, at no additional cost, in responding to requests from individuals exercising rights under applicable privacy laws; and

(f) upon termination or expiry of the relevant Services Agreement, at the Client's written election, delete or return all Personal Information in Fruition's possession and certify that it has done so.

18.3 Data Breach Notification

Fruition shall notify the Client without undue delay, and in any event within 48 hours of becoming aware, of any actual, suspected or threatened personal data breach affecting Personal Information processed in connection with this Agreement, including any incident that may constitute a Notifiable Data Breach. Each notification shall include, to the extent then known: a description of the nature of the breach; the categories and approximate number of individuals and records affected; the likely consequences; and the measures taken or proposed to contain the breach and mitigate its effects. Fruition shall provide all reasonable cooperation, information and assistance required to enable the Client to comply with applicable breach notification obligations, including any obligation to notify the Office of the Australian Information Commissioner and affected individuals.

18.4 Cross-Border Disclosure

Fruition shall not transfer, store, access or otherwise disclose Personal Information collected in or relating to Australia to any recipient or location outside Australia without the Client's prior written consent, except for transfer to: (a) Fruition's standard third-party platforms used in the ordinary course of providing the Services, a list of which is set out in or notified to the Client under the applicable Work Order; or (b) any other overseas recipient that is bound by standard contractual clauses or equivalent enforceable safeguards approved under applicable privacy law. Where Personal Information is transferred outside Australia (whether under an exception or with Client consent), Fruition shall: (i) take such steps as are reasonable in the circumstances to ensure the overseas recipient does not breach the Australian Privacy Principles in relation to that Personal Information; (ii) ensure the overseas recipient is bound by contractual or other enforceable obligations equivalent to those imposed on Fruition under this Agreement; and (iii) remain liable for the acts and omissions of any overseas recipient in respect of that Personal Information as if they were its own.

18.5 Additional Arrangements

Where required by applicable law, the Parties shall enter into such additional contractual arrangements as are necessary before processing of Personal Information commences. Those arrangements shall prevail over this Agreement in relation to the processing of Personal Information to the extent of any inconsistency.

19. Compliance

19.1 General Compliance

Each Party shall, in connection with this Agreement, comply (and ensure that its Personnel and subcontractors comply) with all applicable laws, regulations, codes of practice and industry standards, including Anti-Bribery Laws, Sanctions Laws, Modern Slavery Laws, Whistleblower Laws and WHS Laws. Each Party shall promptly notify the other in writing upon becoming aware of any actual or threatened breach of this clause by it or its Personnel.

19.2 Anti-Bribery and Corruption

Each Party warrants and undertakes that:

(a) it has not, and shall not, directly or indirectly, offer, promise, give, request, agree to receive or accept any bribe, secret commission, kickback, facilitation payment, unlawful payment, gift, hospitality or other improper financial or non-financial benefit to or from any person (including any public official) in connection with this Agreement or the business activities of the other Party;

(b) it maintains, and shall continue to maintain throughout the Contract Period, adequate policies, procedures and controls reasonably designed to prevent and detect bribery and corruption by its Personnel, subcontractors and agents, consistent with the requirements of applicable Anti-Bribery Laws;

(c) it has not been, and is not the subject of any investigation, inquiry or enforcement proceeding by any governmental, administrative or regulatory body in connection with any actual or suspected breach of Anti-Bribery Laws; and

(d) it shall promptly notify the other Party in writing if it becomes aware of any breach or suspected breach of this clause.

19.3 Sanctions

Each Party warrants and undertakes that:

(a) it is not, and none of its Related Parties or Personnel involved in this Agreement is, a person or entity that is the subject or target of any Sanctions Laws, including being named on any sanctions list maintained by Australia, the United Nations, the United States, the United Kingdom or the European Union;

(b) it shall not, in performing its obligations under this Agreement or receiving any benefit from it, engage in any transaction, dealing or activity that would result in either Party being in breach of Sanctions Laws, including any dealing with a sanctioned person, entity or country; and

(c) it shall promptly notify the other Party in writing if, during the Contract Period, it or any of its Related Parties or Personnel becomes the subject of Sanctions Laws or any investigation in respect of Sanctions Laws.

19.4 Modern Slavery

Each Party warrants and undertakes that:

(a) it does not engage in, permit, condone or facilitate any form of modern slavery, including slavery, servitude, forced or compulsory labour, debt bondage, deceptive recruiting, human trafficking, child labour or worst forms of child labour, in its operations or in any part of its supply chain in connection with this Agreement;

(b) it shall take reasonable steps to identify, assess, manage and report on modern slavery risks in its operations and supply chain in connection with this Agreement and shall comply with all reporting obligations under Modern Slavery Laws applicable to it;

(c) it shall, on the other Party’s reasonable written request and at no additional cost, provide information reasonably necessary to enable the other Party to prepare any modern slavery statement required under Modern Slavery Laws or to assess modern slavery risks; and

(d) it shall promptly notify the other Party in writing upon becoming aware of any actual, suspected or alleged modern slavery in connection with this Agreement or its supply chain.

19.5 Whistleblower Protection

Each Party shall maintain policies and procedures consistent with applicable Whistleblower Laws that enable Personnel and other eligible whistleblowers to disclose information about suspected misconduct or improper conduct without fear of retaliation, victimisation or detriment. Neither Party shall take, threaten or condone any adverse action against any person for making, or proposing to make, a protected disclosure under Whistleblower Laws in connection with this Agreement. Each Party shall promptly notify the other in writing of any protected disclosure that relates to the other Party or the performance of this Agreement, to the extent permitted by Whistleblower Laws.

19.6 Books, Records and Audit

Each Party shall maintain accurate and complete books, records and accounts in connection with this Agreement sufficient to demonstrate its compliance with this clause 19. Each Party shall retain those records for at least 7 years after termination or expiry of this Agreement. On not less than 10 Business Days’ prior written notice, a Party (or its independent auditor bound by appropriate confidentiality obligations) may, at its own cost, audit the other’s books and records relating to compliance with this clause 19. The audit must be conducted during normal business hours, no more than once in any 12-month period (except where there is reasonable cause to suspect a breach), and in a manner that minimises disruption to the audited Party’s business.

19.7 Termination Right

Without limiting any other right or remedy, a Party may terminate this Agreement and all Services Agreements immediately on written notice if the other Party commits a breach of this clause 19 that is not capable of remedy or is not remedied within 10 Business Days of written notice. Termination under this clause is without liability to the terminating Party, and the breaching Party shall remain liable for all Losses arising from the breach.

20. Non-Solicitation

20.1 Restriction on Client

During the Contract Period and for 12 months following its expiry or termination for any reason, the Client shall not, and shall procure that its Related Parties do not, directly or indirectly solicit, recruit, employ, engage or offer to employ or engage (or attempt to do so) any Personnel of Fruition who was involved in the provision of the Services under any Services Agreement, without Fruition's prior written consent. This restriction is imposed solely for the protection of Fruition's legitimate business interests, including the protection of its investment in training and developing its workforce, and its client relationships and goodwill.

20.2 Exceptions

The restriction in clause 20.1 does not apply to Fruition Personnel who:

(a) have ceased to be employed or engaged by Fruition for a period of more than 6 months at the time of the Client's solicitation or approach; or

(b) independently and without any encouragement or facilitation by the Client respond to a bona fide general public advertisement of employment or engagement that is not specifically directed at them.

20.3 Remedy

The Client acknowledges that: (a) Fruition's business is highly dependent on the skills, expertise and continuity of its key Personnel; (b) a breach of clause 20.1 would cause Fruition substantial and irreparable loss and damage that would be extremely difficult to quantify; and (c) damages alone would be an inadequate remedy. Accordingly, Fruition is entitled to seek injunctive or other equitable relief from any court of competent jurisdiction, without being required to prove actual loss, demonstrate inadequacy of damages or give any undertaking as to damages, in addition to any other remedy available at law or under this Agreement, including a claim for damages calculated by reference to the cost to Fruition of recruiting and training a replacement.

20.4 Acknowledgment of Reasonableness

The Client acknowledges that the duration, scope and geographic extent of the restriction in clause 20.1 are reasonable and no greater than necessary to protect Fruition's legitimate business interests, having regard to the nature of the Services and the level of trust and access involved. The restriction has been specifically negotiated between the Parties and reflects adequate consideration provided by Fruition under this Agreement.

20.5 Severability

If the restriction in clause 20.1 is held to be void, invalid or unenforceable in whole or in part, it shall be modified to the minimum extent necessary to make it valid and enforceable, and the remaining provisions of this clause shall continue in full force and effect.

21. Dispute Resolution

21.1 Obligation to Resolve Disputes

The Parties must use all reasonable endeavours to resolve any Dispute promptly, efficiently and without recourse to formal legal proceedings, having regard to their ongoing commercial relationship and the intent that disputes are best resolved collaboratively. The dispute resolution process in this clause does not apply to claims by Fruition to recover amounts owed under any invoice or for any breach of clause 2.11 (Withholding of Deliverables), nor does it apply to applications for urgent or interim injunctive relief.

21.2 Dispute Notice

A Party wishing to raise a Dispute must give the other Party written notice describing the nature of the Dispute with reasonable particularity, identifying the relevant provisions of this Agreement, specifying the outcome or remedy sought and, where a financial claim is involved, the amount claimed or estimated to be at risk (a Dispute Notice).

21.3 Negotiation

Within 10 Business Days of a Dispute Notice being given (or such extended period as the Parties agree in writing), a senior representative of each Party with full authority to settle the Dispute shall meet (in person or by videoconference) and use reasonable endeavours in good faith to resolve the Dispute. Any settlement reached by negotiation shall be recorded in a written agreement signed by both Parties, whereupon it is final and binding on both Parties.

21.4 Mediation

If the Dispute is not resolved within 20 Business Days of the Dispute Notice (or such longer period as the Parties agree in writing), either Party may refer it to mediation. The mediation shall be conducted on the following terms:

- (a) the mediator shall be agreed by the Parties within 10 Business Days of the referral notice or, failing agreement, appointed by the Chair of the Resolution Institute (or its successor body) on the application of either Party;
- (b) the mediation shall take place in Sydney, New South Wales (or by videoconference with the mediator's consent);
- (c) the Parties must participate in good faith and must each be represented by a person with full authority to settle the Dispute;
- (d) the costs of the mediator shall be shared equally, with each Party bearing its own legal and preparation costs; and
- (e) any settlement reached at mediation shall be recorded in a written agreement signed by both Parties, whereupon it is final and binding.

21.5 Court Proceedings

No Party may initiate court or arbitration proceedings in respect of a Dispute unless it has first complied with clauses 21.2 to 21.4, except that either Party may at any time seek urgent injunctive or other interim relief from a court of competent jurisdiction without first complying with those procedures. The existence of a Dispute does not relieve either Party of its obligation to continue performing under the relevant Services Agreement during the dispute resolution process.

21.6 Debt Recovery

Nothing in this clause 21 prevents Fruition from commencing court proceedings at any time to recover any amount payable by the Client under this Agreement, including any undisputed invoiced amount, default interest or amounts owing upon termination.

22. Notices

22.1 Form of Notices

Any notice or other communication given to a Party under or in connection with this Agreement shall be in writing and shall be:

- (i) delivered by hand or by pre-paid post or other next Business Day delivery service to the address set out below; or
- (ii) sent by email to the email address set out below, or to such other address as may be notified by one Party to the other in writing from time to time.

To Fruition: Fruition Services Pty Ltd

Address: Level 12/64 York Street, Sydney NSW 2000, Australia

For the attention of: Joshua Jebathilak

Email: josh@fruitionservices.io

To the Client: ____

Address: ____

For the attention of: ____

Email: ____

To the Client: the Client contact, physical address and email address specified in the applicable Work Order (Client Address for Notices), or such other details as the Client notifies to Fruition in writing.

22.2 Deemed Receipt

Any notice or communication shall be deemed to have been received:

(i) if delivered by hand, on signature of a delivery receipt;

(ii) if sent by pre-paid post or other next Business Day delivery service, at 9.00am on the second Business Day after posting or at the time recorded by the delivery service; and

(iii) if sent by email, at the time of transmission, or if this time falls outside business hours in the place of receipt, when business hours next resume. Business hours mean 9.00am to 5.00pm on a Business Day that is not a public holiday in the place of receipt.

22.3 Service of Proceedings

This clause does not apply to the service of any proceedings or other documents in any legal action or, where applicable, any arbitration or other method of dispute resolution.

23. General Provisions

23.1 Governing Law and Jurisdiction

This Agreement and all Services Agreements entered into under it, together with any non-contractual obligations arising out of or in connection with them, are governed by and construed exclusively in accordance with the laws of New South Wales, Australia, without regard to any conflict of laws principles. The Parties irrevocably and unconditionally submit to the non-exclusive jurisdiction of the courts of New South Wales (and any courts of appeal from them) for the resolution of all Disputes and any other proceedings arising out of or in connection with this Agreement, and agree not to raise any objection to the venue of those proceedings on grounds of inconvenient forum or otherwise.

23.2 Relationship of the Parties

Nothing in this Agreement creates a partnership, joint venture, agency, employment, franchise or fiduciary relationship between the Parties. Each Party acts as an independent contractor in its own right and is solely responsible for its own employees, subcontractors and other Personnel.

Without limiting the foregoing:

(a) no Personnel of Fruition is, or is to be regarded as, an employee, worker, partner or agent of the Client by reason of this Agreement;

(b) the Client has no obligation to pay or contribute towards any salary, wages, superannuation, leave entitlements, workers' compensation premiums, payroll tax, PAYG withholding or other employee-type entitlements or impositions in respect of any Personnel of Fruition, all of which are the sole responsibility of Fruition;

(c) Fruition is solely responsible for the supervision, direction and control of its Personnel in the performance of the Services, including their hours of work, methods of work and tools used;

(d) Fruition indemnifies the Client against all Losses suffered or incurred by the Client arising from any claim that any Personnel of Fruition is, or should be treated as, an employee of the Client, or any claim arising from Fruition's failure to comply with its obligations as an employer or principal in respect of its Personnel;

(e) neither Party has the authority to act for, represent, bind or create any obligation on behalf of the other Party, and neither Party shall represent to any third party that it has any such authority; and

(f) the Parties acknowledge that this Agreement is intended to constitute a genuine commercial contract for services and is not intended to operate as, or be characterised as, a sham contracting arrangement under Part 3-1 of the Fair Work Act 2009 (Cth).

23.3 Entire Agreement

This Agreement, together with all Work Orders and incorporated documents, constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior and contemporaneous negotiations, representations, warranties, understandings, correspondence and agreements (whether oral or written) between the Parties relating to that subject matter. Each Party acknowledges that it has not entered into this Agreement in reliance on any representation not expressly set out in these documents. Nothing in this clause limits or excludes any liability for fraud or fraudulent misrepresentation.

23.4 Assignment

Neither Party may assign, transfer, novate, charge or otherwise deal with any of its rights or obligations under this Agreement without the prior written consent of the other Party, not to be unreasonably withheld, conditioned or delayed.

A Change in Control of a Party constitutes an assignment for the purposes of this clause and requires the other Party's prior written consent, except that no consent is required for a Change in Control of Fruition resulting from: (a) a bona fide internal restructure or reorganisation of Fruition or its group; (b) an initial public offering of Fruition or any holding entity; or (c) a sale, merger or transfer of all or substantially all of Fruition's business or assets to a third party that is not a direct competitor of the Client and has financial and operational capacity reasonably equivalent to that of Fruition, provided that Fruition gives the Client not less than 20 Business Days' prior written notice of the proposed Change in Control. The Client may terminate the affected Services Agreements by written notice within 30 days of receiving the notice if it reasonably objects on competition or material risk grounds.

Any purported assignment, transfer or dealing made in breach of this clause is void and of no effect.

23.5 Variation

This Agreement may only be amended or varied by a written instrument that expressly identifies the provisions being amended and is signed by an authorised representative of each Party. No oral agreement, representation, conduct or course of dealing may amend or modify this Agreement or give rise to any obligation binding on either Party.

23.6 Waiver

No failure, delay or forbearance by a Party in exercising any right, power or privilege under this Agreement operates as a waiver of that right, power or privilege. A waiver is effective only if given in writing by the waiving Party and signed by its authorised representative. No waiver of a breach of any provision of this Agreement constitutes a waiver of any other or subsequent breach of that provision or any other provision.

23.7 Severability

If any provision of this Agreement is or becomes invalid, illegal or unenforceable in any jurisdiction, that invalidity, illegality or unenforceability does not affect any other provision or the validity or enforceability of that provision in any other jurisdiction. Any invalid, illegal or unenforceable provision shall be modified to the minimum extent necessary to make it valid, legal and enforceable, or, if modification is not possible, shall be severed from this Agreement without affecting the remaining provisions.

23.8 Counterparts and Electronic Execution

A Work Order or Change Request may be executed in any number of counterparts, each of which constitutes an original and all of which together constitute one instrument. This Agreement is not itself signed; it takes effect in respect of a Client through execution of a Work Order that incorporates it. A Party may sign any Work Order or Change Request by electronic signature (including by DocuSign or a similar platform), and such signature is as valid, binding and enforceable as a wet-ink signature. Counterparts may be exchanged by email or other electronic means.

23.9 Business Continuity

Fruition shall maintain reasonable business continuity and disaster recovery arrangements appropriate to its size and operations, designed to support the continued performance of its material obligations under each Services Agreement in the event of a significant disruption to its operations, including cyber incidents, system failures or Force Majeure Events. Fruition shall provide the Client with a summary of its business continuity arrangements upon request.

23.10 Costs

Except as otherwise expressly provided, each Party shall bear its own legal, accounting and other professional costs incurred in connection with the negotiation, preparation, execution and performance of this Agreement.

23.11 No Third Party Rights

This Agreement is made for the sole benefit of the Parties. Nothing in this Agreement confers or is intended to confer any right, benefit or remedy on any third party, whether under any applicable legislation or otherwise.

23.12 Further Assurances

Each Party shall, at its own cost unless otherwise expressly stated, execute and deliver all further documents, instruments and deeds and take all further actions reasonably necessary or desirable to give full effect to the provisions of this Agreement and to carry out the intent and purposes of the Parties.

23.13 Cumulative Remedies

The rights and remedies of each Party under this Agreement are cumulative and in addition to, and not exclusive of or a substitute for, any other right or remedy available to it under any other provision of this Agreement, at law, in equity or otherwise. The exercise (or partial exercise) of any right or remedy does not prevent the further exercise of that right or remedy or the exercise of any other right or remedy.

23.14 Work Health and Safety

Each Party shall comply with all WHS Laws applicable to it in connection with this Agreement. Without limiting the foregoing:

- (a) where Fruition’s Personnel attend the Client’s premises, the Client shall ensure those premises and any associated systems of work are, so far as reasonably practicable, without risk to the health and safety of those Personnel, and shall provide such information, training, instruction and supervision as is reasonably necessary;
- (b) Fruition shall ensure its Personnel are appropriately trained, supervised and instructed in WHS matters relevant to the Services, and that they comply with the Client’s reasonable written WHS policies and procedures of which Fruition has been notified in advance;
- (c) each Party shall promptly notify the other in writing of any notifiable incident (within the meaning of the WHS Laws), or any incident, near miss, hazard or safety concern, arising in connection with the Services; and
- (d) the Parties shall consult, cooperate and coordinate activities with one another to the extent reasonably required by WHS Laws.

23.15 Conflict of Interest

The Client acknowledges and agrees that Fruition: (a) provides services of the same or a similar nature to other clients, including in industries or sectors in which the Client operates; and (b) may continue to do so during and after the Contract Period, including for clients that are competitors of the Client, provided that Fruition complies with its obligations under clause 17 (Confidentiality) and clause 18 (Data Protection and Privacy). Nothing in this Agreement restricts Fruition’s right to perform services for any other person, and the Client shall not assert any conflict of interest in respect of such other engagements except where actual misuse of the Client’s Confidential Information or Personal Information has occurred.

Each Party shall promptly notify the other in writing if it becomes aware of any actual or perceived conflict of interest that materially affects its ability to perform its obligations under this Agreement, and the Parties shall consult in good faith on appropriate steps to manage that conflict.

23.16 Personal Property Securities Act

To the extent that this Agreement, any Services Agreement or any related transaction creates a 'security interest' in favour of Fruition for the purposes of the PPSA:

(a) Fruition may register, perfect and maintain the security interest on the Personal Property Securities Register, and the Client shall do all things reasonably required by Fruition (including providing information) to enable Fruition to do so;

(b) the Client waives any right it may have under section 157 of the PPSA to receive notice of any verification statement;

(c) the Parties contract out of the application of sections 95, 96, 121(4), 125, 130, 132(3)(d), 132(4), 135, 142 and 143 of the PPSA, to the extent permitted, and the Client waives any rights it may have under those sections; and

(d) neither Party shall disclose information of the kind referred to in section 275(1) of the PPSA, except as required under section 275(7)(b) to (e), and each Party agrees that this Agreement is confidential and protected by section 275(6) of the PPSA.

23.17 Public Announcements

Neither Party shall make, issue or authorise any public announcement, press release, social media post, marketing material or other public statement that refers to the other Party, its name, logo, the existence or contents of this Agreement, or any matter arising under it, without the other Party's prior written consent (which, in the case of routine marketing references to the engagement consistent with clause 10.11, shall not be unreasonably withheld). Each Party may, without consent, make disclosures required by law, regulation or the rules of a recognised securities exchange, subject to clause 17.3.